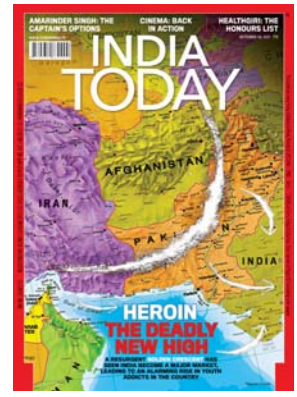
FROM THE

EDITOR-IN-CHIEF

On October 2, 2021, Narcotics Control Bureau (NCB) Mumbai zonal director Sameer Wankhede led a sensational raid on *Cordelia*, a luxury cruise ship, and arrested 20 people who had come for a spot of merrymaking, confiscating what the sleuths claimed was a large haul of illicit drugs. The most sensational catch: Aryan Khan, son of cinema icon Shah Rukh Khan. It was no mere gathering of revellers, the NCB investigators claimed. The volume of drugs seized, in their view, pointed to links with an international drugs syndicate. They insisted that Aryan was complicit. If charges were proven under the Narcotic Drugs and Psychotropic Substances (NDPS) Act, 1985, the punishment could range from six months to 20 years of rigorous imprisonment. When the rich and famous are in trouble, public hoopla invariably follows, fanned by the media. Aryan was rich by inheritance and famous only for being famous, even if a relative recluse.

Nine months later, the case has not only fallen flat, it has undergone a near-complete inversion. Wankhede, who then headed NCB's zonal directorate, looks more like the villain of a botched investigation and Aryan an innocent victim. It started with Maharashtra's minister for minorities Nawab Malik making the allegation that Wankhede had a dubious past—having faked a Scheduled Caste certificate to get into the Indian Revenue Service, for one. The NCB chief then constituted two special teams: one to independently investigate the *Cordelia* case, the other to enquire into allegations of corruption against Wankhede.



October 18, 2021

On the first, this is what the Special Investigation Team (SIT) found. To begin with, Aryan had nothing on him. He was arrested only because his friend, Arbaaz Merchant, was carrying six grams of charas—within the limits of what's legally categorised as a much lesser crime than trafficking, that of personal consumption. What's more, Arbaaz testified that Aryan had warned him against carrying drugs on the cruise. Two, no medical investigation was done on Aryan to clinch any argument that he had consumed charas. Three, Wankhede's team had seized Aryan's phone—without logging it as per due process—and latched on to a series of WhatsApp conversations where he had talked about procuring marijuana. But the SIT found most of these took place while Aryan was in California, where marijuana consumption is legal. One conversation relating to Mumbai, where Aryan had asked for a loan of Rs 80,000 to be repaid "in kind", was not backed up with any corroborative evidence that weed had indeed changed hands. Four, the NCB sleuths had lumped together all the drugs they recovered in their raid and claimed it as a single haul, thus making *Cordelia* out to be a sort of pop-up trafficking hub—whereas the seizures were from entirely different individuals, with no connection to each other. They had all simply come with their individual stash for their own consumption. The NCB chief then took the rare and courageous decision of admitting that the bureau had made a mistake in indicting Aryan and five others involved in the *Cordelia* case and chargesheeting 15 others.

The separate Special Enquiry Team started looking at Wankhede himself, who had earlier hit the headlines for investigating the drug angle to the Sushant Singh Rajput death and charging his ex-girlfriend Rhea Chakraborty with drug-related offences. Wankhede turned out to have a fondness for the good life and fancy watches: among other brands, he possessed a Rolex watch, which he had bought for Rs 17.40 lakh. He now has to explain to the team how he came to own these assets that are allegedly disproportionate to his known sources of income.

Group Editorial Director Raj Chengappa, who put together the inside story of why the NCB had to drop the case against Aryan, speaks of a larger theme in law—that the entire sordid and unjust episode may prove to have some redemptive value after all. Boiled down to its essence, it holds three morals that may together serve to turn India towards a saner, more empathetic view of its narcotics laws. Marijuana, a soft drug traditionally consumed in India, was clubbed together with all the harder synthetic drugs of the modern world under US pressure when the NDPS Act was formulated in 1985. At a time when parts of the world have realised the categorical error and are moving towards decriminalising its consumption, India can use this opportunity to move towards an amendment that allows a more nuanced approach. Specifically, spending good investigative energies in nabbing and penalising consumers is like catching the wrong end of the stick—the NCB has much sterner challenges in catching the bigger fish who produce, import and distribute on a wholesale basis.

India is now a major transit and consumption country for hard drugs. A survey by the social justice ministry reveals there are 80 to 100 million Indians using illicit drugs and psychotropic substances. Many of them will fall foul of the law and rampant arrests will mean Indian jails will be clogged with them. An estimated 70,000 people are being arrested every year for illicit sale and consumption of drugs, and thousands languish in jails as they don't have the legal resources Aryan could muster. For consumers, especially the young, a concerted rehabilitative approach is the best—with easy-to-access counselling centres across India. And last but not the least, the Aryan Khan case offers a cautionary tale: of overzealous investigating officers whose penchant for hitting the headlines outstrips their professional rigour and honesty. Perhaps, the unintended consequence of Aryan spending 26 days in jail could be a review of the draconian NDPS Act as the Modi government is doing for many other Acts.



(Aroon Purie)